

24SMCV02770 24SMCV02770

County: los-angeles

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Department: 207

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Case Number: 24SMCV02770 Hearing Date: July 9, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

June

15, 2026 - continued to July 9, 2026

CASE NUMBER

24SMCV02770

MOTION

Motion

for Leave to Amend Complaint

MOVING PARTY

Plaintiff

Galina Kopelev

OPPOSING PARTY

Defendant

The Churchill Condominium Association

MOTION

This case arises from a dispute between homeowner and the condominium association.

On June 10, 2024, Plaintiff Galina Kopelev ("Plaintiff") filed suit against Defendant The Churchill Condominium Association ("Defendant" or "Churchill") alleging ten causes of action for (1) breach of the governing documents; (2) breach of the covenant of good faith and fair dealing; (3) breach of fiduciary duties; (4) breach of the covenant of quiet enjoyment; (5) negligence; (6) public nuisance; (7) private nuisance; (8) trespass; (9) intentional infliction of emotional distress; and (10) negligent infliction of emotional distress.

Plaintiff now moves for leave to amend the Complaint to add three defendants (Defendant's contractor and the two co-owners of Unit 6E) and corresponding allegations, adding an eleventh cause of action for trespass to chattels, and adding allegations that Defendant breached its fiduciary duties, causing additional damages to Plaintiff's unit.

Defendant opposes the motion and Plaintiff replies.

The Court continued the hearing on the grounds that Plaintiff failed to provide ample notice of the motion, in violation of Defendant's due process rights, and invited supplemental briefing, in light of the initial procedural defect. Defendant did not file any supplemental opposition. Plaintiff filed a notice that Defendant had not filed any supplemental opposition, to which Defendant responded by filing an attorney declaration. Plaintiff filed evidentiary objections to the attorney declaration in a supplemental reply.

EVIDENTIARY

OBJECTIONS

The Court overrules Plaintiff's evidentiary objections to Defendant's attorney declaration filed in a supplemental reply. The objections are not in proper

form, and the Court disagrees with Plaintiff that the declaration mischaracterizes the Court's prior minute order.

LEGAL

STANDARD

Amendments

to Pleadings: General Provisions

Under Code of Civil Procedure

section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

To wit, without notice to the other

party the Court has wide discretion to allow either party (i) to add or strike the name of a party or (ii) to correct a mistake in the name of a party or a mistake in any other respect "in furtherance of justice" and "on any terms as may be proper." (See Code Civ. Proc., § 473, subd. (a)(1); see also *Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429.) Alternatively, after notice to the other party, the Court has wide discretion to allow either party to amend pleadings "upon any terms as may be just." (See Code Civ. Proc., § 473, subd. (a)(1). Similarly, Code of Civil Procedure section 576 states "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."

Judicial policy favors resolution of

all disputed matters between the parties and, therefore, leave to amend is liberally granted. (*Berman vs. Bromberg* (1986) 56 Cal.App.4th 936, 945; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 [this has been an established policy in California since 1901] (citing *Frost v. Whitter* (1901) 132 Cal. 421, 424; *Thomas v. Bruza* (1957) 151 Cal.App.2d 150, 155).) The Court of Appeal in *Morgan v. Superior Court* held "If the

motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530, citations omitted.) Moreover, “it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [opposing party did not establish harm by the delay in moving to amend the complaint].)

“The court may grant leave to amend the pleadings at any stage of the action.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:636 (hereafter Weil & Brown).) Denial of a motion to amend is rarely justified if the motion is timely made and granting the motion will not prejudice the opposing party. (Id. at ¶ 6:639, citations omitted.) However, if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (Id. at ¶ 6:655, citations omitted. Absent prejudice, any claimed delay alone is not grounds for denial. “If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (Id. at ¶ 6:653 (citing Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565).) “Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. . . . But the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider.” (Weil & Brown, supra, at ¶ 6:656, citations omitted.)

“Even if some prejudice is shown, the judge may still permit the amendment but impose conditions, as the Court is authorized to grant leave ‘on such terms as may be proper.’” (Weil & Brown, supra, at ¶ 6:663, citation omitted.) For example, the court may cause the party seeking the amendment to pay the costs and fees incurred in preparing for trial. (Id. at ¶ 6:664 (citing Fuller v. Vista Del Arroyo Hotel, 42 Cal.App.2d 400, 404).)

California

Rules of Court, rule 3.1324: Procedural Requirements

Pursuant to California Rules of

Court, rule 3.1324(a), a motion to amend a pleading before trial must:

“(1) Include a copy of the proposed amendment or amended pleadings, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

In addition, under Rule 3.1324(b), a motion to amend a pleading before trial must be accompanied by a separate declaration that specifies the following:

“(1) the effect of the amendment;

(2) why the amendment is necessary and proper;

(3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier.”

DISCUSSION

I.

Timeliness

As a threshold matter, Code of Civil

Procedure section 1005, subdivision (b) requires that moving and supporting papers be filed and served no later than sixteen (16) court days prior to the hearing. That timeframe is extended by

two (2) court days when service is made electronically. (See Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

In opposition, Defendant indicates Plaintiff served the motion by email on May 22, 2026. But eighteen court days before the June 15 hearing, when accounting for Memorial Day – a Court holiday, is May 19, 2026.

Plaintiff does not contest this in reply.

The Court continued the hearing on the motion to permit the parties to file supplemental papers addressing the merits of the motion. Therefore, the Court finds that the procedural issues have been cured.

II. Merits

Plaintiff seeks leave to amend the complaint to add three additional defendants, add one additional cause of action for trespass to chattels, and to amend a few of the causes of action to allege additional facts regarding the newly-named defendants concerning water and sewer leak damages to Plaintiff's property, after informal attempts to resolve the dispute with those defendants failed and the resulting property damage have become more extensive.

Plaintiff has attached a redlined copy of the proposed amended complaint which shows the proposed additions.

In support of the motion, Plaintiff advances her own declaration which provides as follows:

1. I am the Owner Resident of the Condo Unit in the Churchill Condo Association, 13 story condominium building located at 10450 Wilshire Boulevard in Los Angeles, which I purchased in 2015.
2. I am a widow and occupy the Unit SE on the fifth floor by myself as my primary residence.
3. During the years of my Residency, being a very experienced business woman, well-educated and knowledgeable in the Davis Sterling Act, I have observed that the Churchill Association along with its Agent Bell Property

Management (during the last three years) has and continues to issue improper decisions in violation of law, demonstrating failure of the Fiduciary Duty, a lack of Transparency (opting instead to operate in secret and without full disclosure to its members), concealment of the Financial data, Mismanagement, lack of Maintenance, resulting in the Depreciation of the Condo Values, Frustration and Concerns of the Homeowners, which gave rise to the Causes of Action stated in my Complaint.

4. Evaluating the Churchill's CC&R, I have discovered that the Association was governed by the outdated, archaic covenants, conditions, and restrictions ("CC&Rs"), which based on the information and believe were first recorded in 1976, the Deficiencies of which have been causing the numerous legal actions against Churchill, including this one.

5. Around the time I have filed my Complaint, I suffered from two independent Episodes of the Water and Sewage leakages to my expensively and beautifully designed Bathroom from the Unit 6E Upstairs severally damaging it, specifically:

a. Leakage to my Bathroom and Closet, extensively damaging my walls, floors, ceiling, etc. resulting from the unlawfully and unpermitted by the Los Angeles Department of Building and Safety (LADBS) installed in the Closet the Laundry machines without proper drainage.

b. Sewage pipe leakage from the Unit 6E Toilet to my Unit, due to the broken (practically non-existent) part of the Sewage pipe, which has caused a terrible disgusting smell, and was discovered when hired by me plumber made openings in the wall.

6. Since the damages were discovered, I was in the written communications with the Manager and the Owners of the Unit 6E on the regular basis, the evidence of which is available and will be presented at Trial.

7. I made endless, documented Good-Faith attempts to mitigate damages and conserve Judicial Resources.

8. Being a blameless Victim in this Incidents, caused by the Owners of the Unit 6E and/or Churchill Condo Association, I did not specifically address in My Complaint the damages to my bathroom, hoping for the obvious to me Administrative and Out-of-Court resolution.

9. Unfortunately despite large volume of the written communications, the Defendants (Condo owners of the Unit 6E on one hand and the Churchill Manager on another), refused to take Responsibility, blaming each other.

10. I have been living in the Unit (with the damaged unusable Bathroom), with wet walls, terrible smell, which affect my health. At this point I see no other option but to bring the Bell Management and the Condo owners of the Unit 6E as additional Defendants.

11. The Defendants have created a Deadlock for me by disputing their respective responsibilities among themselves, and refusing to take responsibility for the Damages to my property.

12. I don't see other venue for myself but Court Intervention where these competing liabilities can be sorted out. Denying me the Leave to amend my Complaint, would effectively and unfairly punish me for the Defendants' internal gridlock.

(Kopelev
Decl. ¶¶ 1-12.)

Thus, Plaintiff's declaration demonstrates the effect of the amendment (to add new defendants), that the proposed amendments are necessary and proper to litigate all of Defendants' competing liabilities in one action, and that Plaintiff did not request leave to amend sooner because she was first attempting to informally resolve the dispute without court intervention. Finally, Plaintiff discovered the new Defendants' potential liability during informal discussions, during which the Defendants blamed each other.

In opposition, Defendant Churchill argues that Plaintiff unreasonably delayed because she knew of the water and sewage intrusions since 2024, yet waited two years, until the eve of trial, to move for leave to amend. Further, Churchill argues that Plaintiff cannot bring these claims under the relation-back doctrine because Plaintiff was not genuinely ignorant of their identities, and as such the proposed new amendments are time-barred.

Taking Churchill's second argument

first, the Court does not generally consider the merits of the amendment in determining whether to grant leave to amend.

If Churchill is correct, those claims can subsequently be addressed via a motion challenging the pleading or a dispositive motion.[1]

Regarding unreasonable delay, Plaintiff, who is proceeding in pro per, indicates the delay was due to Plaintiff's attempt to informally resolve the dispute.

Further, delay alone is insufficient grounds to deny the motion. Churchill does not point to any evidence that will be lost or any other such prejudice that will result from granting Plaintiff leave to amend the complaint.

CONCLUSION AND ORDER

Finding the motion procedurally and substantively proper, the Court grants Plaintiff's motion for leave to amend the complaint.

Further, the Court orders Plaintiff to facilitate the issuance of a new Summons in light of the addition of new parties, and thereafter, orders Plaintiff to file and serve the proposed First Amended Complaint on or before August 10, 2026.

Further, the Court orders Plaintiff upon service of the amended Summons and Complaint to file the attendant proofs of service.

Further, on the Court's own motion, the Court vacates the Final Status Conference and Jury Trial, and sets a Case Management Conference on November 30, 2026 at 8:30 A.M. in Department 207. All parties shall comply with California Rules of Court, rules 3.722, et seq., regarding Initial and Further Case Management Conferences. In particular, all parties shall adhere to the duty to meet and confer (Rule 3.724) and to the requirement to prepare and file Case Management Statements (Rule 3.725).

Plaintiff shall provide notice of the Court's orders and the Case Management Conference on all parties forthwith, and file the notice with a proof of service.

DATED: July 9, 2026 ____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court

[1] The Court will generally not consider the merits of the proposed amendment in determining whether to grant leave to amend. (See *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [“the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings”].)